



DEPARTMENT OF AGRICULTURE

Plant Industry Division

RULES AND REGULATIONS PERTAINING TO THE PROCEDURE FOR ESTABLISHING PEST CONTROL DISTRICTS AND FOR THE CONTROL OF GRASSHOPPERS, MORMON CRICKETS, OR RANGE CATERPILLARS - Repealed eff. 05/30/2019

8 CCR 1203-7

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Adopted April 11, 2019 – Effective May 30, 2019

Statutory Authority

The repeal of these Rules is proposed by the Commissioner of the Colorado Department of Agriculture ("Department") pursuant to her authority under §§ 35-5-103 and 123 C.R.S., of the Colorado Pest District Act.

Purpose

Consistent with the Department's Regulatory Efficiency Review Process, the purpose of this rulemaking is to repeal, in their entirety, the "Rules and Regulations Pertaining to the Procedure for Establishing Pest Control Districts and for the Control of Grasshoppers, Mormon Crickets, or Range Caterpillars" ("Rules") currently published at 8 CCR 1203-7.

Factual and Policy Issues

1. The last infestation in Colorado of grasshoppers, Mormon crickets, and/or range caterpillars (the "Pests") that required mitigation occurred in 1985. Since that time, the Rules have not been utilized, nor has the Department engaged in control of the Pests.
2. The United States Department of Agriculture Animal and Plant Health Inspection Service ("USDA APHIS") has conducted monitoring in Colorado, as well as in 16 other states, for rangeland grasshoppers each year.
3. USDA APHIS, and not the Department, enters into cost-sharing agreements with landowners to control grasshoppers when those insect populations exceed a threshold established by USDA APHIS.
4. The Department cannot assist with cost-sharing or control unless the relevant county commissioners provide the Commissioner of Agriculture with certification of the formation of a pest control district and unless the Governor has declared a state of emergency resulting from a major infestation of the grasshopper or range caterpillar.
5. There are only five pest control districts in the State of Colorado, and none of those districts is considered a grasshopper control district. In fact, grasshoppers are only listed as a pest of concern in one district, Yuma County.
6. Between 2010 and 2018 grasshopper populations in Colorado have remained low, with only a few instances of localized hot spots in select geographical rangeland areas.

7. Because the Rules have not been implemented in over 30 years; because there has never been a need for the Department to institute control or mitigation measures for the Pests; and because USDA monitors for rangeland grasshoppers in Colorado, both the Department's role with respect to control/mitigation of the Pests and the Rules have become obsolete.
8. If, in the future, formation of a pest control district for the Pests is necessary, the authority to form and operate such a district remains intact at §§ 35-5-104 and 120, C.R.S. Repeal of the Rules will not change that authority, nor will it preclude any existing pest control district from identifying the Pests as insects of concern in the future.

Editor's Notes

History

Entire rule repealed eff. 05/30/2019.